

Court No. - 40

Case :- WRIT - C No. - 38695 of 2023

Petitioner :- Shahnaz Begum

Respondent :- Purvanchal Vidhut Vitana Nigam Ltd And Another

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Heard Shri Arun Mishra, learned counsel for the petitioner and Shri Pankaj Srivastava, learned counsel appearing for the respondents.
2. By means of the present writ petition, the petitioner has prayed for a direction commanding the respondent no. 2 to get the alleged connection No. 6964995000 deleted from his record as it was never issued.
3. The petitioner is confined his prayer that the application of the petitioner is to be considered in view of Clause 6.5(b) of the Electricity Supply Code.
4. Shri Srivastava has no objection, in case, the petitioner moves an appropriate application in accordance with law within reasonable time, definitely, the same would be processed as per law.
5. Learned counsel for the petitioner states that while moving an application under Code, 2005, the petitioner has already made representation to the competent authority for providing copy of the application form and agreement to the Executive Engineer which is annexed as Annexure-2 to the writ petition.
6. Before proceeding further in the matter, let the aforementioned application is to be addressed so that he may move an application under Clause 6.5 of the Electricity Supply Code, 2005.
7. Considering the facts and circumstances, we are not inclined to keep the matter pending consideration. With the consent of the counsel for the parties, the writ petition is **disposed of**. In case, petitioner moves an appropriate application in view of the provision contained in Clause 6.5(b) of the Electricity Supply Code, 2005 within a week's time, definitely, the same would be considered in accordance with law, expeditiously.

Order Date :- 5.12.2023

Rama Kant